

LOCATION:

30 Allandale Avenue, London, N3 3PJ

PROPOSAL:Use of the existing ancillary swimming pool building for commercial operations
(Retrospective application)**KEY DATES****Statutory Expiry:****25th April 2025****Recommendation:****Ex. of time** (if applicable):**Site Visit** (if applicable):

4th April 2025

Case Officer:**Olivia Becci****Responsible
Planning Manager:**

Lesley Feldman

Applicant:

Mr Joshua Singer

Ward:

Finchley Church End

CIL Liable?**OFFICER'S ASSESSMENT****1. Site Description**

The application site is located at 30 Allandale Avenue and is a detached house on the northern side of Allandale Avenue, opposite College Farm. The site benefits from an existing, lawfully constructed pool enclosure (F/01441/14) and a driveway with on-site parking for several cars. The area is residential in character, with private gardens forming an important element of local character and tranquillity. The site is not in a Conservation Area, there are no TPOs and the pool structure itself has not been physically altered as part of this application.

2. Relevant Planning History

Reference: 15/05924/RCU

Address: 30 Allandale Avenue, London, N3 3PJ

Decision: Approved subject to conditions

Decision Date: 17 November 2015

Description: Retention of existing side, front and rear extensions (retrospective application)

Reference: F/01441/14

Address: 30 Allandale Avenue, London, N3 3PJ

Decision: Lawful

Decision Date: 3 April 2014

Description: Erection of new swimming pool enclosure, following the demolition of existing storage shed.

Reference: F/01655/12

Address: 30 Allandale Avenue, London, N3 3PJ

Decision: Approved subject to conditions

Decision Date: 10 July 2012

Description: Single storey front and rear extensions. Two-storey side extension with pitched roof to match existing and conversion of garage and storage rooms in to habitable room. Alteration to roof including new dormer window to front elevation to extension existing loft conversion.

Reference: C17107/07

Address: 30 Allandale Avenue, London, N3 3PJ

Decision: Approved subject to conditions

Decision Date: 22 June 2007

Description: Rear extension to include glazed conservatory. Internal alterations. Extension at first floor to the side of the house.

3. Proposal

This application seeks to regularise the use of the existing ancillary swimming pool building for commercial operations. The commercial operations in question are children's swimming lessons.

The applicant has noted in the Planning Statement that lessons are 1:1 or 1:2 (max 4 children in the pool at any one time), staggered, and restricted to the hours of 14.00 to 20.00 on Mondays - Wednesdays, 09.30 to 16.00 on Fridays and 08.00 to 13.00 on Sundays (the applicant has confirmed a correction to the Sunday hours which state 08.30 to 17.30 in paragraph 1.1 of the statement). The Planning Statement argues the use is low intensity and provides an important SEND-focused service. The structure itself was previously found lawful (F/01441/14).

4. Public Consultation

The application was called in to committee by Councillor Daniel Thomas for the following reason:

"Regarding the above planning application in my ward, if the objection threshold has not been met for hearing at committee, I would like to request it is determined by committee for the following planning considerations:

- * traffic generation, Highway safety and parking
- * noise and disturbance resulting from use

I would be grateful if my support for the application can be recorded in the application report, albeit with my preference for conditions to mitigate noise and disturbance to immediate neighbours (for example, re-location of noisy equipment such as air conditioning). "

Neighbours consulted: 20

A general development site notice was posted outside the site on the 06.03.2025

118 comments were received, which were comprised of both objection and support comments. 104 support comments and 14 objections comments were received.

Objections:

- Increased traffic, parking congestion, and highway safety risks from drop-offs.
- Noise and disturbance from lessons, instructors, and occasional parties.
- Loss of residential amenity and tranquillity; impact on immediate neighbours.
- Concerns about commercial use in a quiet residential area and proposed hours of operation.

Support:

- Valuable community facility providing vital swimming lessons for children.
- Especially benefits those with SEND, health conditions, or religious needs.
- Lessons described as quiet, respectful, and well-managed with minimal disruption.
- Provides local employment and comparable to other home-based services.

Consultees:

The Councils Environmental Health officers, as well the Councils Education and Learning Services team, have been consulted throughout the lifetime of the application and where relevant their comments have been incorporated in the report below.

5. Planning Considerations

5.1 Policy Context

National Planning Policy Framework and National Planning Practice Guidance

The determination of planning applications is made mindful of Central Government advice and the Local Plan for the area. It is recognised that Local Planning Authorities must determine applications in accordance with the statutory Development Plan, unless material considerations indicate otherwise, and that the planning system does not exist to protect the private interests of one person against another.

The revised National Planning Policy Framework (NPPF) was published on the 12th of December 2024 and amended on the 7th of February 2025. This sets out the government's planning policies for England and how these are expected to be applied.

The NPPF states (para 131) that good design is a key aspect of sustainable development, creates better places in which to live and work and helps make development acceptable to communities. Being clear about design expectations, and how these will be tested, is essential for achieving this.

The NPPF (para 11) retains a presumption in favour of sustainable development. This applies unless "any adverse impacts of doing so would significantly and demonstrably outweigh the benefits, when assessed against the policies in this Framework taken as a whole, having particular regard to key policies for directing development to sustainable

locations, making effective use of land, securing well-designed places and providing affordable homes, individually or in combination".

The Mayor's London Plan 2021

The London Development Plan is the overall strategic plan for London, and it sets out a fully integrated economic, environmental, transport and social framework for the development of the capital to 2050. It forms part of the development plan for Greater London and is recognised in the NPPF as part of the development plan.

The London Plan provides a unified framework for strategies that are designed to ensure that all Londoners benefit from sustainable improvements to their quality of life.

Barnet Local Plan 2021 - 2036 (Adoption 2025)

On the 4th of March 2025, the Council's new Local Plan was adopted.

The Local Plan establishes the Council's vision for growth and development in Barnet over a 15-year period (2021-2036) and together with the London Plan, North London Waste Plan, West Finchley Neighbourhood Plan and Area Action Plans, forms the Development Plan for Barnet.

The Development Plan is the basis upon which planning applications will be determined unless there are material planning considerations that indicate otherwise.

The new Local Plan replaces the previous Local Plan (2012) (comprising the Core Strategy and Development Management Policies Development Plan Documents).

The existing Supplementary Planning Documents, Planning Briefs, Conservation Area Character Appraisals and Town Centre Frameworks remain extant and are material consideration in the assessment of planning applications, unless or until they are replaced/updated.

Policy CDH01 of the Local Plan states developments will be expected to respond sensitively to the distinctive local character and design, building form, patterns of development, scale, massing, roof form and height of the existing context. It also requires developments to mitigate adverse noise impacts on the surrounding environment and amenity through design, layout and insulation.

Policy ECC02 expects developments to avoid unacceptable noise levels close to noise sensitive uses.

Supplementary Planning Documents

Residential Design Guidance SPD (adopted October 2016)
Sustainable Design and Construction SPD (adopted October 2016)

5.2 Main issues for consideration

The main issues for consideration in this case are:

- Principle of Development and the impact on the appearance and character of the area

- The impact on the amenities of neighbouring occupiers

5.3 Assessment of proposals

The principle of development and the impact on the appearance and character of the area

The principle of introducing a commercial operation into a residential property must be considered carefully against the established character of Allandale Avenue. The surrounding area, with the exception of College Farm, is wholly residential in nature, defined by detached and semi-detached dwellings with private gardens that contribute to a sense of space, privacy and tranquillity. While ancillary outbuildings such as the existing pool structure are acceptable in residential areas, their lawful use is as an incidental facility to the occupiers of the main dwelling house.

While the applicant places significant emphasis on the social value of the facility, particularly for children with Special Educational Needs and Disabilities (SEND), and for children from families whose religious or cultural requirements make public pools unsuitable, these considerations do not alter the fundamental planning judgement on the principle of introducing a commercial use into a residential street. The Planning Statement explains that approximately 50% of the user base are SEND children and that the private setting provides a calm, therapeutic environment free from the overstimulation of public leisure centres. It also notes that some families prefer a private facility for cultural or religious reasons, where modesty or separation requirements cannot be met in mainstream pools.

These claimed benefits are recognised, and officers accept that there is genuine social value in the provision of alternative facilities of this kind. However, planning policy requires that such benefits are delivered in appropriate locations. The lawful purpose of outbuildings in residential gardens is to provide incidental domestic use to the household. The shift to a permanent, organised commercial activity — generating repeat visits, vehicle movements, and the congregation of customers — remains materially different in character from what is expected of a quiet residential garden setting. While the SEND and religious justifications attract weight in the planning balance, they do not alter the fact that the change of use introduces a business operation into an otherwise tranquil street, contrary to Policy CDH01 of the Barnet Local Plan (2025).

In effect, the use seeks to meet identified community needs, but does so in a location where the impacts on character and neighbour amenity are unacceptable. Such provision would more appropriately be accommodated within existing educational or community facilities, or at sites identified for community infrastructure, rather than within a private domestic plot.

The introduction of a regular, organised commercial operation that attracts visiting customers, results in the congregation of visitors, and produces regular vehicle movements creating an activity profile that is materially different from the incidental activity of a single household. The applicant's case rests on low class sizes, staggered lessons and limited hours. Even accepting these controls, the effect of repeated, scheduled comings and goings, waiting parents, and occasional gatherings creates a permanent commercial rhythm to the rear garden which erodes the private, tranquil character of the plot and the locality. The Council's position is that this change of function from private ancillary use to ongoing commercial activity is harmful to the established residential character, contrary to Policy CDH01 and the character objectives of Barnet's Adopted Local Plan 2025.

Appeal decisions (all outside London) submitted by the applicant show that outcomes can vary depending on local circumstances. The applicant's comparisons are noted, but the Council must assess this site on its particular context (proximity to neighbouring gardens, tightness of on-street parking, and the fact the site is located in a quiet residential street where garden privacy is a defining feature). On balance, officers consider the introduction of a regular commercial use within this private garden to be harmful to the residential character of the area.

The impact on the amenities of neighbouring occupiers

A number of immediate neighbours (including those directly abutting the pool enclosure) have reported audible instruction/shouting and disturbance in their gardens and living rooms, together with vehicular congestion blocking driveways. Other local residents report that the use is well managed and that they have not observed disturbance. The representation pattern therefore includes directly-affected neighbours who report actual harm and others (mostly more distant) who report no issue.

The original submitted Noise Impact Assessment (NIA) by 'Impact Acoustics' concludes that the proposed commercial use will not result in significant noise impacts, demonstrating compliance with the NPPF. However, the the LPA's Environmental Health Officer raised substantial concerns about the adequacy of this assessment. Specifically, the report fails to fully account for the physical reality of noise from poolside activities, such as shouting and screaming, particularly from user groups, which may cause far greater disturbance than simple averaged noise levels.

It was noted that the NIA report relied on a 3-hour assessment conducted on a day when the pool facility was not in use, according to the submitted hours of use in the application documents ("there are no lessons on thursdays or saturdays"), and there is a lack of clarity about whether the pool was at full capacity during the assessment, as well as whether doors and windows were open or closed. The report also fails to address the noise impacts from the arrivals and departures of users, most of whom are likely to travel by car, further contributing to potential noise disturbance. The absence of this data significantly undermines the validity of the conclusions drawn in the NIA.

The Environmental Health Officer also points out that the LAeq levels recorded during the assessment period showed a substantial increase, more than doubling over the course of the 3-hour window. Importantly, LAm_{ax} data, which would capture peak noise events such as shouting or slamming of doors, was not provided for the poolside assessment itself, a crucial oversight given the nature of poolside activities.

Furthermore, the noise break-out from the facility, particularly from windows and doors, is of paramount concern. Despite the NIA's conclusions, the reality is that the noise from pool activities is unlikely to be inaudible, and this is the primary source of complaints from local residents. Environmental Health have indicated that it would be impractical to impose enforceable noise conditions on the operation of the facility, further suggesting that the noise from the proposed use would likely cause harm to residential amenity.

The operational hours proposed by the applicant are also of significant concern. The application requests hours of use that extend beyond typical daytime hours, including evenings and weekends, which would result in noise disturbance during times when residents are most likely to be in their homes and gardens. This is particularly problematic in a densely populated residential area like Allandale Avenue.

The proposed hours of operation, including evening use until 8:00 PM on weekdays and nearly full-day use on Sundays, are considered unacceptable given the close proximity of neighbouring residential properties. The Environmental Health Officer argues that such extended hours would prevent residents from enjoying peace and quiet in their homes and gardens, especially during evenings and weekends when external noise levels are more noticeable. It is also noted that the lack of a more traditional weekday 9:00 AM - 5:00 PM operational schedule suggests that the facility is not designed to align with the needs of the surrounding residential community.

In addition to noise from poolside activities, the air-conditioning unit for the facility is another source of potential noise disturbance. In the event of an approval a condition to restrict the noise levels from the air-conditioning plant to ensure that the noise emitted does not adversely affect neighbouring properties would be imposed.

The applicant's previous use of the facility has been cited by objectors as having exceeded the current proposed usage, with reports of pool parties and other loud activities taking place. Despite the conclusions of the NIA, the evidence provided by the local residents suggests that the actual impact of the facility's use has been far more disruptive than anticipated, further strengthening concerns that the current proposal will have a similar or greater impact on the amenity of surrounding properties.

In conclusion, the proposal fails to adequately address the concerns raised regarding noise impact, particularly from poolside activities, arrivals and departures of users, and plant equipment. The proposed operational hours are not suitable for a densely populated residential area and would significantly harm the amenity of neighbouring residents, particularly during evenings and weekends. Given the lack of sufficient mitigation measures and the practicality of enforcing noise limits, it is considered that the proposed development would result in unacceptable levels of noise disturbance, which would significantly detract from the quality of life of nearby residents.

Following the Council's Environmental Health Officer's initial objections regarding the adequacy of the submitted Noise Impact Assessment (NIA), the applicant has provided a revised Noise Report and formal rebuttal prepared by Impact Acoustics Ltd.

The updated report sought to address specific concerns raised by the Council, including the need for:

- * LAmax measurements to capture short-term peak noise events such as shouting or slamming doors; and
- * an assessment of vehicle movements associated with arrivals and departures.

The rebuttal notes that for the amended Noise Report "The assessments were carried out over a five day period with one noise meter on the boundary to capture the prevailing background noise levels and a second located inside the swimming pool area to capture a 3 hour period during lessons at its maximum capacity of two teachers and four students. The three hour period is then used as the worst case scenario as the source levels of noise used within all the calculations and assessments. For reference, the three hour period when the class was operational was removed from the background noise data captured externally at the boundary to assess a true background noise level assessment."

The rebuttal also argues that audibility of sound alone does not necessarily amount to an adverse impact, referencing the Environmental Protection Act 1990 and World Health

Organization guidance. "For a noise to be considered adverse impact it must amount to an "unreasonable interference with the use or enjoyment of land," which is assessed on factors such as volume, character, duration, frequency, and the local context. Guidance from bodies such as the Chartered Institute of Environmental Health (CIEH) and the World Health Organization (WHO) Environmental Noise Guidelines emphasises that it is not sufficient that a sound can simply be heard; it must reach a level that is deemed materially detrimental to health or quality of life. Local authorities therefore apply professional judgement, often informed by standards such as BS 4142:2014+A1:2019 (Methods for rating and assessing industrial and commercial sound), which specifically distinguishes between mere audibility and significant adverse impact. Our assessment has indicated 'Low Impact' and not an adverse impact."

The rebuttal considers that the EH Officer seems to be ignoring the physical technical data contained within the report and basing their professional opinion on local residents comments without verifying these through either site visits themselves or undertaking their own noise impact assessments.

Following receipt of this additional information, Environmental Health officers have provided a further response:

"BS4142:2014 A1:2019 is not strictly used for assessing recreational noise from children in leisure activities. However, it can be used for commercial premises. My understanding is that this report is being used indicatively to demonstrate that the continued use as a pool will not cause a noise nuisance. It is clear from consultation that some neighbouring residents feel that it is a noise nuisance. The pool has been in operation without planning permission for some months now so this assessment by neighbours was possible.

The main issue is that this is an intensive proposed commercial usage in a quiet residential area. The secondary issue is that there is a noise impact from the swimming pool on the neighbouring residents. The swimming pool is against the boundary with a neighbour's garden. Its pool plant (noisy) room is near to the boundary too. These are very close to the neighbour which would exacerbate the noise impact.

Although the noise report's calculated impacts do appear to conform to a noise level unlikely to cause a nuisance, I would suggest that the consultant has under calculated the noise for the following reasons: BS4142 depends on averaging noise whereas shouting and screaming is by its nature intermittent and short lived, so the impact is "reduced " by averaging. Where a penalty is included for the nature of the (averaged) noise I would suggest it is in fact 4dBA higher than calculated for the BS4142; the consultant has included only a +2dBA for tonality. I would argue that shouting (from teachers) and shouts/ screams from children would account for a +6dBA tonality penalty which would raise the levels of perceived noise to the neighbours by a further +4dBA. A maximum for tonality is required because screams from children/ shouts from teachers are perceptibly different from surrounding noise of traffic and at the distances involved they are louder. This is likely to cause annoyance despite the calculations appearing to be to the contrary.

Again, the noise impact on neighbouring gardens is not considered within BS4142 assessments (only noise levels at residents' facades and windows), whereas I would consider the noise levels in gardens in a garden suburb such as Barnet are important too. The noise impacts in gardens will be higher than calculated.

The usage is exceptionally intensive; operating on a Sunday morning when neighbours should reasonably be allowed to enjoy their garden amenity is unacceptable. The

proposed hours in the evenings when people would like to relax after work similarly are too long."

The revised NIA and rebuttal provide a more detailed justification for the applicant's position. The Council's assessment remains that the operation would continue to result in noise and disturbance harmful to the living conditions of nearby residents. Whether noise amounts to a statutory nuisance is not the only factor in a planning assessment of the impacts of a development on the residential amenities of neighbouring residents. In this case the activity generated by the use including comings and goings is considered to be of a level that is not commensurate with a quiet residential street and officers conclude that the impact on neighbouring residential occupiers would be contrary to Policies CDH01 and ECC02 of the Barnet Local Plan (2025) and the aims of the NPPF.

5.4 Response to Public Consultation

- The main planning considerations have been addressed in the body of the report.

6. Equality and Diversity Issues

The Equality Act 2010 (the Act) came into force in April 2011. The general duty on public bodies is set out in Section 149 of the Act. The duty requires the Council to pay regard to the need to eliminate discrimination and promote equality with regard to those with protected characteristics such as race, disability, and gender including gender reassignment, religion or belief, sex, pregnancy or maternity and foster good relations between different groups when discharging its functions.

Equality duties require Authorities to demonstrate that any decision it makes is reached in a fair, transparent and accountable way, considering the needs and the rights of different members of the community. This is achieved through assessing the impact that changes to policies, procedures and practices could have on different equality groups. It is an opportunity to ensure better decisions are made based on robust evidence.

Section 149 of the Act states that:

- (1) A public authority must, in the exercise of its functions, have due regard to the need to—
 - (a) eliminate discrimination, harassment, victimisation and any other conduct that is prohibited by or under this Act;
 - (b) advance equality of opportunity between persons who share a relevant protected characteristic and persons who do not share it;
 - (c) foster good relations between persons who share a relevant protected characteristic and persons who do not share it.
- (2) A person who is not a public authority but who exercises public functions must, in the exercise of those functions, have due regard to the matters mentioned in subsection (1).
- (3) Having due regard to the need to advance equality of opportunity between persons who share a relevant protected characteristic and persons who do not share it involves having due regard, in particular, to the need to—
 - (a) remove or minimise disadvantages suffered by persons who share a relevant protected characteristic that are connected to that characteristic;
 - (b) take steps to meet the needs of persons who share a relevant protected characteristic that are different from the needs of persons who do not share it;

- (c) encourage persons who share a relevant protected characteristic to participate in public life or in any other activity in which participation by such persons is disproportionately low.
- (4) The steps involved in meeting the needs of disabled persons that are different from the needs of persons who are not disabled include, in particular, steps to take account of disabled persons' disabilities.
- (5) Having due regard to the need to foster good relations between persons who share a relevant protected characteristic and persons who do not share it involves having due regard, in particular, to the need to—
 - (a) tackle prejudice, and
 - (b) promote understanding.
- (6) Compliance with the duties in this section may involve treating some persons more favourably than others; but that is not to be taken as permitting conduct that would otherwise be prohibited by or under this Act.
- (7) The relevant protected characteristics are—
 - age;
 - disability;
 - gender reassignment;
 - pregnancy and maternity;
 - race;
 - religion or belief;
 - sex;
 - sexual orientation.
- (8) A reference to conduct that is prohibited by or under this Act includes a reference to—
 - (a) a breach of an equality clause or rule;
 - (b) a breach of a non-discrimination rule.
- (9) Schedule 18 (exceptions) has effect.

It is considered that the application concerns a protected group (disability). It is acknowledged that the proposal would benefit young children.

In determining this planning application, the Local Planning Authority must have due regard to the equalities impacts of the proposed redevelopment of the site on those persons protected under the Equality Act 2010. This Act requires the Local Planning Authority to demonstrate that any decision it makes is reached in a fair, transparent or accountable way considering the needs and rights of different members of the community.

The potential equality impacts have been highlighted above. Any equalities impacts have also to be analysed in the context of the overall planning merits of the scheme and the benefits it will confer particularly the specific group of individuals.

The applicant and many supporters emphasise the social and safeguarding value of the pool: the applicant states approximately 50% of users are children with SEND and the pool offers a quiet, therapeutic environment not always available in mainstream leisure centres. Officers have consulted internally with the Education & Learning Services for local evidence and summary advice. Their response confirms that Barnet has some SEND swimming provision (e.g. Copthall Leisure Centre, New Barnet Leisure, Finchley Lido / BACE programmes) but that there is a limited supply of small-group or 1:1/2:1 provision for children with acute sensory or complex needs. The Education response noted that the Allandale setting, as described, could complement existing provision but that they had not inspected the facility directly. Officers also note that there are private swimming operators in the borough who offer small group teaching.

The Council must have due regard to the Public Sector Equality Duty and the needs of disabled children when making planning decisions. Officers have given careful consideration to these factors. They are a material benefit and are afforded significant weight. However, the Equality Act does not automatically require the LPA to grant planning permission where there is demonstrable and unmitigated harm to residential amenity and character. On balance, while the social and inclusive benefits are acknowledged and are important, they do not outweigh the harmful impacts on the character of the residential area and on immediate neighbours' living conditions in this case.

7. Planning Balance & Conclusion

The NPPF applies a presumption in favour of sustainable development, unless any adverse impacts of doing so would significantly and demonstrably outweigh the benefits.

Having taken all material considerations into account, officers find that the permanent introduction of a commercial swimming operation into a private garden in this quiet residential street has materially changed the activity profile of the property in a way that harms the established residential character and results in an unacceptable loss of neighbouring amenity. While the SEND and religious justifications attract weight in the planning balance, officers consider they do not overcome the concerns arising from the introduction of a business operation into an otherwise tranquil street, contrary to Policy CDH01 of the Barnet Local Plan (2025).

This application is therefore recommended for refusal.

OFFICER'S RECOMMENDATION / PREVIEW OF DECISION

Refuse

- 1 The introduction and continued operation of commercial swimming lesson activity within the private garden and pool outbuilding has resulted in a material change of character on the site, through regular comings and goings, the congregation of visitors and a commercialised pattern of activity. The use is harmful to the established residential character and tranquillity of Allandale Avenue by reason of the continuous presence of a commercial operation within a domestic garden. The proposal is therefore contrary to Policy CDH01 of the Adopted Barnet Local Plan (2025), Policy D3 of the London Plan (2021) and the NPPF (2025).
- 2 The commercial use of the pool outbuilding results in significant harm to the amenity of neighbouring residential properties, particularly due to noise disturbance from poolside activities, user arrivals and departures. The proposed operational hours, including evening and weekend use, are considered unacceptable in a densely populated residential area, exacerbating the potential for noise nuisance. This is contrary to Policy D3 of the London Plan (2021), Policies CDH01 and ECC02 of the Local Plan (2025) and the Residential Design Guidance SPD (2016).

Informative(s):

- 1 The plans accompanying this application are:

Site Location Plan
Planning Statement dated 9th February 2025
Block Plan

HD758/9005 As Built Site Plan

HD758/9008 As Built Floor Plans

Industrial Noise Impact Assessment by Impact Acoustics Ref: IMP7903-1 dated August 2025

- 2 In accordance with paragraphs 38-57 of the NPPF, the Council takes a positive and proactive approach to development proposals, focused on solutions. To assist applicants in submitting development proposals, the Local Planning Authority (LPA) has produced planning policies and written guidance to guide applicants when submitting applications. These are all available on the Council's website. A pre-application advice service is also offered.

The applicant did not seek to engage with the LPA prior to the submission of this application through the established formal pre-application advice service. The LPA has discussed the proposal with the applicant/agent where necessary during the application process. Unfortunately the scheme is not considered to accord with the Development Plan. If the applicant wishes to submit a further application, the Council is willing to assist in identifying possible solutions through the pre-application advice service.

**Signature of Officer
with Delegated
Authority**

A handwritten signature in black ink, appearing to read "L. Feldman". The signature is written in a cursive, flowing style with a large initial "L" and a trailing flourish.

Lesley Feldman, Planning Manager